

WHICH PROGRAMME SECTION YOUR CASE RAN UNDER

For: Maria-Alejandra O'Shaughnessy-Whitfield

Three Nevada sections govern sealing after a court treatment programme, and they are structurally identical - the branch, not the section, decides everything. Which section applies follows from which programme your case ran under:

- NRS 176A.245, where the case ran under the programme of treatment for ALCOHOL OR OTHER SUBSTANCE USE established under NRS 176A.240;
- NRS 176A.265, where it ran under the programme for treatment of MENTAL ILLNESS OR INTELLECTUAL DISABILITIES established under NRS 176A.260;
- NRS 176A.295, where it ran under the programme for treatment of VETERANS AND MEMBERS OF THE MILITARY established under NRS 176A.290.

If your case never ran through one of those three programmes, this packet is not your route: an ordinary probation discharge routes to NRS 176A.850 and then to a petition under NRS 179.245 on the conviction track. If you are not sure which programme your case ran under, the clerk of the court that handled the case can tell you from the court's own record.

Whichever section applies, the next page's question - the branch - is what decides whether you file anything at all.

Route:

obligation:track-pathway:NV:nv_seal_probation_family:probation-or-specialty-court-dismissal-set-aside-sealing

THE QUESTION THAT DECIDES WHETHER ANYTHING IS FILED

For: Maria-Alejandra O'Shaughnessy-Whitfield

ONE QUESTION decides whether anything in this packet is filed:

Were you charged with a violation of NRS 200.485 (battery constituting domestic violence), NRS 484C.110 or NRS 484C.120 (driving or being in actual physical control of a vehicle under the influence, or the related controlled-substance driving offence), AND were the charges conditionally dismissed or the judgment of conviction set aside?

IF NO - subsection 1 of the applicable section applies. Sealing is AUTOMATIC: after you are discharged from probation or the case is dismissed under the programme section, the court shall order the records sealed, without a hearing, if you fulfilled the terms and conditions imposed by the court and the Division - unless the Division petitions the court, for good cause shown, not to seal and requests a hearing. You file NOTHING. Do not file the petition in this packet. The referral page says where to go instead.

IF YES - subsection 2 applies. Sealing is NOT automatic: it follows only upon the filing of a petition by you, and the petition cannot be filed sooner than SEVEN YEARS after the conditional dismissal or the setting aside of the judgment. The petition, proposed order and declaration in this packet are for exactly this branch.

BARRED ON BOTH BRANCHES: subsection 3 of each section forbids sealing under the section where you were charged with a violation of NRS 200.508 (abuse, neglect or endangerment of a child) or NRS 200.5099 (abuse, neglect, exploitation, isolation or abandonment of an older person or a vulnerable person). If that was the charge, stop: nothing in this packet can be filed, and a lawyer or Nevada Legal Services is the place to take the question.

Sealing under these sections is also not available where the programme was not completed and you were sentenced rather than discharged or the case dismissed.

Route:

obligation:track-pathway:NV:nv_seal_probation_family:probation-or-specialty-court-dismissal-set-aside-sealing

HONOURABLE OR DISHONOURABLE DISCHARGE

For: Maria-Alejandra O'Shaughnessy-Whitfield

If you were discharged from probation, was the discharge HONOURABLE or DISHONOURABLE?

On this track the answer does not change the mechanism: subsections 1 and 2 turn on whether you fulfilled the terms and conditions imposed by the court and the Division, not on a presumption.

It matters for what comes after. NRS 179.2445(2) provides that the rebuttable presumption in favour of sealing does NOT apply to a defendant given a dishonorable discharge from probation under NRS 176A.850 who applies for sealing of records relating to the conviction. If your discharge was dishonourable, any later petition on the ordinary conviction track under NRS 179.245 proceeds without that presumption, and that is a reason to talk to a lawyer or Nevada Legal Services before filing anything anywhere.

Your own court paperwork states which discharge you were given; the clerk of the court that handled the case can confirm it from the record.

Route:

obligation:track-pathway:NV:nv_seal_probation_family:probation-or-specialty-court-dismissal-set-aside-sealing

PETITION TO SEAL RECORDS UNDER SUBSECTION 2 OF NRS 176A.245, 176A.265 OR
176A.295

USE THIS PETITION ONLY ON THE SUBSECTION 2 BRANCH: you were charged with a violation of NRS 200.485, NRS 484C.110 or NRS 484C.120, the charges were conditionally dismissed or the judgment of conviction set aside, and not sooner than seven years have passed since. On the subsection 1 branch nothing is filed - the branch-screen page of this packet is the test.

IN THE COURT
(DISTRICT, JUSTICE OR MUNICIPAL COURT THAT HANDLED THE CASE, AND ITS COUNTY -
your own court paperwork states it, and that court's clerk can confirm it)

IN THE MATTER OF THE PETITION OF MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD
TO SEAL RECORDS

Case No. (the case number of the underlying case, from your court paperwork)

PETITION TO SEAL RECORDS UNDER SUBSECTION 2 OF NRS 176A.245, NRS 176A.265 OR
NRS 176A.295

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, petitions this Court, as the court that handled the case identified above, to order sealed all records relating to that case, as subsection 2 of the applicable section provides.

2. The petitioner states, from the court's own records:

The chapter 176A programme the case ran under (the programme of treatment under NRS 176A.240, NRS 176A.260 or NRS 176A.290, making the applicable sealing section NRS 176A.245, NRS 176A.265 or NRS 176A.295):

.....

The charge, worded exactly as the court record words it (a violation of NRS 200.485, NRS 484C.110 or NRS 484C.120):

.....

.....

How the charge was resolved - conditionally dismissed, or the judgment of conviction set aside - exactly as the record states it:

.....

Date of the conditional dismissal or of the setting aside of the judgment:

.....

3. Not sooner than seven years have elapsed since the date stated above, as subsection 2 requires.

4. The petitioner fulfilled the terms and conditions imposed by the court and by the Division of Parole and Probation.

5. The petitioner was not charged with a violation of NRS 200.508 or NRS 200.5099, which subsection 3 of each section excludes from sealing.

6. The petitioner therefore asks the Court to order sealed all documents, papers and exhibits in the petitioner's record, minute book entries and entries on dockets, and other documents relating to the case in the custody of the agencies and officers named in the proposed order submitted with this petition, as subsection 2 of the applicable section provides. The petitioner is advised that the court shall order the records sealed without a hearing unless the Division petitions the court, for good cause shown, not to seal the records and requests a hearing thereon.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

DATE OF BIRTH: 1968-12-31

MAILING ADDRESS: 11884 East Painted Rock Crossing Boulevard, Apartment 14B, Reno, Nevada 89506-2214

TELEPHONE: (775) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:track-pathway:NV:nv_seal_probation_family:probation-or-specialty-court-dismissal-set-aside-sealing

PROPOSED ORDER SEALING RECORDS

This proposed order accompanies the subsection 2 petition. The list of agencies and officers below is operative text, not formality: subsections 1 and 2 reach only records "in the custody of such other agencies and officers as are named in the court's order", and under subsection 4 each named agency or officer must notify the court in writing of compliance. You list every agency that touched your case, from your own papers.

IN THE COURT
(THE SAME COURT AS THE PETITION)

IN THE MATTER OF THE PETITION OF MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD
TO SEAL RECORDS

Case No.

ORDER SEALING RECORDS UNDER SUBSECTION 2 OF NRS 176A.245, NRS 176A.265 OR NRS 176A.295

The petition of the above-named petitioner to seal records having been filed under subsection 2 of the applicable section, and the Division not having petitioned the court, for good cause shown, not to seal the records,

IT IS ORDERED that all documents, papers and exhibits in the petitioner's record, minute book entries and entries on dockets, and other documents relating to the case in the custody of the agencies and officers named below are SEALED.

Agencies and officers whose records are sealed by this order (listed by the petitioner from the petitioner's own papers; every agency that touched the case belongs on these lines):

.....
.....
.....
.....

Under subsection 4 of the applicable section, the court will send a copy of this order to each agency or officer named in it, and each must notify the court in writing of compliance. Under NRS 179.275 a copy also goes to the Central Repository for Nevada Records of Criminal History.

DATED this day of,

JUDGE

(The date and signature lines above are the court's own. Nothing on them is written by the petitioner or by this packet.)

DECLARATION IN SUPPORT OF THE PETITION

This declaration accompanies the subsection 2 petition. The sections prescribe no verification; this is the ordinary support for facts not appearing of record, and every fact on it is yours to state from your own records.

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, am the petitioner in the accompanying petition to seal records.

2. The case ran under the chapter 176A programme stated below, and I completed it:

.....

3. The charge was resolved as stated below - conditionally dismissed, or the judgment of conviction set aside - on the date stated below:

.....

4. Not sooner than seven years have elapsed since that date. The computation is mine, made from the date on my own court paperwork.

5. I fulfilled the terms and conditions imposed by the court and by the Division of Parole and Probation.

6. I declare under penalty of perjury that the foregoing is true and correct.

DATE SIGNATURE OF DECLARANT

(The declarant signs and dates this declaration personally. Nothing on this page is signed or dated for the declarant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route:

obligation:track-pathway:NV:nv_seal_probation_family:probation-or-specialty-court-dismissal-set-aside-sealing

FILING AND SERVICE INSTRUCTIONS FOR THE SUBSECTION 2 PETITION

For: Maria-Alejandra O'Shaughnessy-Whitfield

These instructions accompany the subsection 2 petition. On the subsection 1 branch nothing is filed and none of this applies.

WHERE TO FILE. In the justice court, municipal court or district court that handled the case - the sections name all three, as applicable, so venue follows the court of the underlying case rather than a single court level. Your own court paperwork states which court that is.

WHEN. Not sooner than seven years after the conditional dismissal or the setting aside of the judgment. Count from the date on your court paperwork; if the record does not show clearly whether the disposition was a conditional dismissal, a set-aside or an ordinary dismissal, stop and get help before filing.

WHAT TO EXPECT. The court shall order the records sealed **WITHOUT A HEARING** unless the Division of Parole and Probation petitions the court, for good cause shown, not to seal the records and requests a hearing. If the Division does petition, that is a contested proceeding and a reason to get a lawyer.

FEE. Neither NRS 176A.245, NRS 176A.265 nor NRS 176A.295 imposes, authorises or mentions a fee, on either branch. Whether the clerk of your particular court charges a filing fee for the petition is not established by the sections, and this packet states no amount: ask the clerk of the court that handled the case before filing. The NRS 179.245(9) sex-trafficking fee waiver is confined by its own words to a petition under NRS 179.245 and is not authority for a waiver here.

SERVICE. The sections prescribe none: they require only the filing of a petition by the defendant and name no person to be served, while giving the Division the right to object. Whether your court expects the petition to be served on the Division or on the prosecutor is not established by the text: ask the clerk of the court that handled the case, and follow what that clerk says.

THE PROPOSED ORDER. Whether the court expects the proposed order lodged with the petition or settled after decision is not established by the sections: ask the same clerk.

AFTER THE ORDER. The court sends a copy of the sealing order to each agency or officer named in it, each of which must notify the court in writing of compliance, and under NRS 179.275 a copy also goes to the Central Repository for Nevada Records of Criminal History.

WHAT SEALING IS AND IS NOT. Nevada law calls this record sealing and never expungement: the state agency states directly that sealing is not expungement because it does not authorise destruction of the records. Under NRS 179.285 the proceedings are deemed never to have occurred and civil rights are restored, but NRS 179.295 allows sealed records to be reopened and NRS 179.301 allows certain persons and agencies to inspect them. A Nevada order does not bind out-of-state or federal agencies and does not reach records they hold. Sealing does not restore firearm rights; only a pardon that does not restrict the right to bear arms does. Nevada sealing must not be described as having any immigration effect.

Route:

obligation:track-pathway:NV:nv_seal_probation_family:probation-or-specialty-court-dismissal-set-aside-sealing

THE AUTOMATIC BRANCH: WHERE TO GO WHEN NOTHING IS FILED

For: Maria-Alejandra O'Shaughnessy-Whitfield

On the subsection 1 branch - no charge under NRS 200.485, NRS 484C.110 or NRS 484C.120 that was conditionally dismissed or set aside - sealing is automatic and YOU FILE NOTHING. This page is where to go instead of filing:

THE COURT THAT SUPERVISED THE PROGRAMME. After you are discharged from probation or the case is dismissed under the programme section, that court is required to order the records sealed, without a hearing, if you fulfilled the terms and conditions imposed by the court and the Division - unless the Division petitions, for good cause shown, not to seal. The court holds the sealing order and is the only body that can act. If time has passed and you do not know whether the order was entered, ask the clerk of the court that handled the case to check the record.

NEVADA LEGAL SERVICES. If the clerk's answer is that no order was entered, or the Division has objected, or anything about the record is unclear, Nevada Legal Services is where to take it.

WHEN TO STOP AND GET HELP INSTEAD OF FILING ANYTHING

- the charge was a violation of NRS 200.508 or NRS 200.5099, which subsection 3 bars from sealing on both branches;
- the Division petitions the court, for good cause shown, not to seal and requests a hearing - that is a contested proceeding;
- whether you fulfilled the terms and conditions imposed by the court and the Division is disputed or unclear on the record;
- the programme was not completed and you were sentenced rather than discharged or the case dismissed;
- the seven-year period has not elapsed, or its start date is uncertain because the record does not show clearly how the case was resolved;
- your discharge was dishonourable, which under NRS 179.2445(2) removes the presumption on any later petition under NRS 179.245;
- records sit in more than one county, or in both municipal and justice or district court;
- federal, tribal, military or out-of-state records are involved - a Nevada order does not reach them;
- your goal is firearm rights, which sealing does not restore;
- any pending charge, and any conviction during the clean period other than a minor moving or standing traffic violation; any offence-category question; or any immigration question.

Route:

obligation:track-pathway:NV:nv_seal_probation_family:probation-or-specialty-court-dismissal-set-aside-sealing